

Line 2

Case Name: *Shan Allen Laliberte, et al. v. F.S. Trucking Company, et al.*

Case No.: 25CV472081

See ORDER above. (At the request of the moving party, this Motion is OFF CALENDAR.)

Line 3

Case Name: *Rhene Cruz, et al. v. General Motors, LLC, et al.*

Case No.: 22CV393759

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Rhene Cruz and Ricardo Cruz move under a signed Civil Code Section 998 Offer to Compromise (“998 Offer”) and the Song-Beverly Consumer Warranty Act (“SBA”), California Civil Code § 1794(d) for an award of attorneys’ fees, costs, and expenses in the total amount of \$33,034.63, consisting of: (1) \$21,877.50 in attorneys’ fees; (2) a 1.35 multiplier enhancement of \$7,657.13, and (3) \$3,5000.00 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion. Notice of Motion (the “Motion”) at 2:4-11 (filed: Jan. 12, 2026).

This Motion is made on the grounds that Plaintiffs are the prevailing party under the SBA claims at issue in this lawsuit; hence, Plaintiffs are entitled to statutory attorneys’ fees, costs, and expenses under Section 1794(d). *Id.* at 2:12-14.

The Motion came on for hearing on August 28, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

A. Factual & Procedural History

On August 16, 2020, Plaintiffs purchased a 2020 Chevrolet Tahoe. The vehicle was equipped with a 5.3L V8 355hp 383ft. lbs. engine and 6-Speed Automatic transmission and came with Defendant’s express warranty. During the warranty period, the vehicle suffered from transmission defects that substantially impaired its use, value, and safety. Declaration of Dhara Chandy In Support of Motion (“Chandy Decl.”) at ¶¶ 3-5.

Plaintiffs presented the vehicle to Defendant’s authorized repair facilities on multiple occasions for repair of these defects. Despite these repair attempts, Defendant was unable to conform the vehicle to the applicable express warranties within a reasonable number of attempts. Plaintiffs made demands upon Defendant to repurchase or replace the vehicle pursuant to the Song-Beverly Consumer Warranty Act, but Defendant refused. Motion at 4:17-21.

Plaintiffs filed their Complaint on January 26, 2022, asserting four causes of action under the Song-Beverly Consumer Warranty Act. Defendant filed its Answer on March 14, 2022. The case proceeded through discovery, case management conferences, mediation